

**SUBSTITUTE FOR
HOUSE BILL NO. 5499**

A bill to amend 1969 PA 306, entitled
"Administrative procedures act of 1969,"
by amending section 101 (MCL 24.301).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 101. **(1)** When a person has exhausted all administrative
2 remedies available within an agency, and is aggrieved by a final
3 decision or order in a contested case, whether ~~such~~**the final**
4 decision or order is affirmative or negative in form, the **final**
5 decision or order is subject to direct review by the courts as
6 provided by law. Exhaustion of administrative remedies does not
7 require the filing of a motion or application for rehearing or
8 reconsideration unless the agency rules require the filing before
9 judicial review is sought. A preliminary, procedural or



1 intermediate agency action or ruling is not immediately reviewable,
2 except that the court may grant leave for review of ~~such~~**the** action
3 if review of the agency's final decision or order would not provide
4 an adequate remedy.

5 **(2) When a person is denied a permit by an agency of this**
6 **state, and after that person has exhausted all administrative**
7 **remedies available within an agency, the person may bring a civil**
8 **action against the agency that denied the permit. The court shall**
9 **award monetary damages and reasonable attorney fees only if the**
10 **person that brings the civil action prevails.**